

THE RIVER RESTORATION BILL, 2016

By

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BILL

An Act to provide for setting out the practical regime of the restoration and conservation of rivers and ensuring water security for all life forms to secure water security and for matters connected therewith or incidental thereto.

WHEREAS the Constitution of India has established democratic Republic;

AND WHEREAS democracy requires an citizenry to be able to perform their Constitutional duty to protect the environment which is vital to life;

AND WHEREAS the constitution requires the bodies of local self-government to protect the environment and rivers;

AND WHEREAS restoration and conservation of rivers is likely to conflict with other public interests including development projects of the Governments, optimum use of limited fiscal resources and the preservation of confidentiality of sensitive information;

AND WHEREAS it is necessary to harmonise these conflicting interests while preserving the paramountcy of the constitutional rights and democratic ideal;

NOW, THEREFORE, it is expedient to provide for empowering citizens and local self-government who desire to conserve their water bodies and ensure water security.

BE it enacted by Parliament in the Sixty-sixth Year of the Republic of India as follows:

CHAPTER I
PRELIMINARY

Short title and commencement	1. This is an Act to provide for River Restoration and Conservation; (1) This Act may be called the River Restoration Act, 2016. (2) It extends to the whole of India except the states of Jammu and Kashmir. (3) Save as otherwise provided, it shall be deemed to have come into force on , 2016.
Definitions	2. In this Act, unless the context otherwise requires, (1) "aggression" shall mean any act that destroys or threatens to destroy the hydrological, biological or ecological integrity of any water body through any means including but not restricted to encroachments, pollution or exploitation; (2) "aquifer" means a geological structure or formation, or an artificial landfill, that is permeated with water or is capable of being permeated with water; (3) "aquifer interference activity" means an activity involving the penetration of an aquifer, or the interference with water in an aquifer, or the obstruction of the flow of water in an aquifer, or the taking of water from an aquifer in the course of carrying out construction, mining, or reclaiming, or the disposal of water taken from an aquifer in the course of reclaiming, mining or construction, or the contamination of water in the aquifer with pollutants; (4) "area sabha" or river panchayat shall be a formal or informal body of local residents; (5) "biological integrity" exists if the ability to support and maintain a balanced, adaptive community of organisms having a species composition, diversity and functional organization comparable to that of natural habitats of the region is maintained; (6) "conservation of water bodies" means all acts that ensure the ecological, biological and hydrological integrity is preserved; (7) "destruction of water bodies" means all acts that ensure the ecological, biological and hydrological integrity is disturbed or destroyed; (8) "drainage basin" or "catchment area" is an extent or area of land where surface water from rain or melting snow or ice converges to a single point, usually the exit of the basin, where the waters join another water body, such as a river, lake, reservoir, estuary, wetland, sea, or ocean. The drainage basin includes both the streams and rivers that convey the water as well as the land surfaces including the mountains and hills from which water drains into those channels; (9) "ecological integrity" is maintained if, when subjected to disturbance, the water body sustains an organizing, self-correcting capability to recover toward an end-state that is 'normal' or 'good' for that system; (10) "encroachment" shall mean undertaking, within the river conservation zone, any activities that are prohibited by this Act; (11) "exploitation" shall mean water use made by a person exceeding the WHO norms per person; (12) "habitat" means any census village or census town; (13) "hydrologic integrity" exists if balanced hydrologic, hydraulic conditions on a temporal and spatial scale that are comparable to the natural characteristics of the region are maintained; (14) "monsoon" means seasonal changes in atmospheric circulation and precipitation associated with the asymmetric heating of land and sea. It includes both the south-

west monsoon arriving in June as well as the north-east monsoon arriving in September.

(15) "local body" means institution of self- government constituted under article 243B or 243Q or a cantonment board or any other body (by whatever name called), entrusted with the duty of supplying the water under the law by or under which it is constituted;

(16) "notification" means a notification issued under this Act and published in the Official Gazette;

(17) "offense" shall include aquifer interference activity, encroachment, exploitation, pollution and any activity prohibited under this Act;

(18) "person" shall include any organization or government under whatever law constituted;

(19) "pollution" shall mean means the man-made or man-induced alteration of the chemical, physical, biological, hydrological, ecological and radiological integrity of any water body;

(20) "protected" shall mean any violation under this act shall be cognizable offense under the Indian Penal Code 299, 304A, 308, 316-338 and other relevant sections;

(21) "rainwater harvesting" is the accumulating and storing, of rainwater. Watercourses are natural rainwater harvesting systems. The rate at which water can be collected from such systems is dependent on the area of the system, its efficiency, and the intensity of rainfall (i.e. annual precipitation (mm per annum) x square meter of catchment area x percolation efficiency = liters per annum yield). In the case of channelized rivers efficiency is close to 0;

(22) "reserved" shall mean unavailable for any purposes other than the natural purpose;

(23) "restoration" means all acts that ensure the ecological, biological and hydrological integrity is restored;

(24) "river" includes any surface or subsurface watercourse, whether perennial or intermittent and whether comprising a natural channel or a natural channel artificially restructured, and any tributary, branch or other watercourse, by whatever name called, into or from which a watercourse flows;

(25) "river conservation zone" includes all such portions of private land that fall within at least 500 m on either side of the floodplain or the red line of the main river, 100 m around a lake and 10 m on either side of the floodplain of a tributary or branch or other watercourse;

(26) "river parliament" or river cooperative shall be a collective of representatives from river panchayats of a river as constituted under this Act;

(27) "Schedule" means a Schedule appended to this Act;

(28) "social audit" means the process in which the area sabha will monitor and evaluate the status of the water bodies in their water block, the implementation of this Act and the planning and implementation of any program or scheme within the scope of this Act;

(29) "State Government", in relation to a Union territory, means the Administrator thereof appointed under article 239 of the Constitution;

(30) "sub-surface water", or "groundwater", is water located in the pore space of soil and rocks. It is also water that is flowing within aquifers below the water table; Sometimes it is useful to make a distinction between sub-surface water that is closely associated with surface water and deep sub-surface water in an aquifer;

(31) "surface water" means water flowing over land (except in a watercourse) after having fallen as rain or hail or having precipitated in any other manner; or after rising

to the surface naturally from underground; or that has been collected in a dam or reservoir; or water that is contained in any storm water infrastructure;

(32) "sustainable withdrawal" means withdrawals that are at a rate that is less than the rate of recharge and in doing so do not diminish the rate of flow of the river by more than 1%;

(33) "to take" water from a water resource includes to take water by pumping or siphoning the water, to stop, impede or divert the flow of water over land (whether in a watercourse or not) for the purpose of collecting the water, to stop, impede or direct the flow of water in any storm water infrastructure for the purpose of collecting the water, or to extract any water from storm water infrastructure, to divert the flow of water in a watercourse from the watercourse, to release water from a lake, to permit water to flow under natural pressure from a well, to permit stock to drink from a watercourse, a natural or artificial lake, a dam or reservoir, to cause, permit or suffer any activity referred to in a preceding paragraph;

(34) "underground water" means sub-surface water occurring naturally below ground level or water pumped, diverted or released into a well for storage underground;

(35) "water body" shall mean any lake, river, pond, nala, stream, tank, well or any other distinct mass of seasonal or perennial water whether publicly or privately owned, including the banks and shores thereof. A water body shall also include all tributaries upstream or sub-surface and catchment for monsoons and absorbing and releasing rainwater;

(36) "water block" shall mean an area measured from the beginning of the water body or previous water block for a length of 20 times the width of the water body and of width that is 10 times the width of the water body on either side;

(37) "water carrying-capacity" is the maximum population in a region that can be supplied water as per WHO norms without resorting to any imports;

(38) "watercourse" means a river, creek or other natural watercourse (whether modified or not) in which water is contained or flows whether permanently or from time to time and includes the entire drainage basin, a dam or reservoir that collects water flowing in a watercourse or a lake through which water flows or a channel into which the water of a watercourse has been diverted or an estuary through which water flows;

(39) "waterfront" means: the bed of any river, together with any land lying between the bed of the river and a line drawn parallel to, and the prescribed distance inland of, the highest bank of the river, or the bed of any lake, together with any land lying between the bed of the lake and a line drawn parallel to, and the prescribed distance inland of, the shore of the lake, or the bed of any estuary, together with any land lying between the bed of the estuary and a line drawn parallel to, and the prescribed distance inland of, the mean high water mark of the estuary, or the bed of the coastal waters of the State, and any land lying between the shoreline of the coastal waters and a line drawn parallel to, and the prescribed distance inland of, the mean high water mark of the coastal waters, where the prescribed distance is 40 metres that lesser distance. Land that falls into 2 or more of the categories referred to may be waterfront land by virtue of any of the paragraphs relevant to that land and it shall include all such wetland and river conservation zone whether inside or outside the prescribed distance;

(40) "water scarce" means the region lacks sufficient water resources to meet the demands of water usage;

(41) "water security" shall mean the protection of the continued existence and flows of all water bodies so that the water access of the future generations may not be compromised for expediency;

(42) "water stress" means the demand for water exceeds the available amount during a certain period or when poor quality restricts its use;

(43) "water source" means the whole or any part of: one or more rivers, lakes or estuaries, or one or more places where water occurs naturally on or below the surface of the ground, and includes the coastal waters of the State;

(44) "well" means an opening in the ground excavated for the purpose of obtaining access to underground water or an opening in the ground excavated for some other purpose but that gives access to underground water or a natural opening in the ground that gives access to underground water;

(45) "wetland" means an area that comprises land that is permanently or periodically inundated with water (whether through a natural or artificial process) where the water may be static or flowing and may range from fresh water to saline water and where the inundation with water influences the biota or ecological processes (whether permanently or from time to time) and includes any other area designated as a wetland— but does not include—a dam or reservoir that has been constructed by a person wholly or predominantly for the provision of water for primary production or human consumption; or an area within an estuary or within any part of the sea;

CHAPTER II

PROVISIONS FOR RIVER RESTORATION AND CONSERVATION

3. Every local body shall

Records and
audit

(1) Maintain records of survey numbers adjoining to water bodies and water blocks duly mapped, catalogued and indexed in a manner and the form which facilitates the right to water security under this Act as well as specified in Schedule I, and ensure that all records that are appropriate to be computerised are, within a reasonable time, computerised and connected through a network all over the country on different systems so that access to such records is facilitated;

(2) Publish within one hundred and twenty days from the enactment of this Act maps of all water bodies, hills and mountains within the area falling under their jurisdiction and declare them to be permanent easements reserved and protected within the meaning of this Act;

(3) Declare on their websites and through press-releases circulated to every newspaper, radio and tv channel in the region that all the listed water bodies and any that may have been missed by omission or commission as permanent easements and reserved and protected within the meaning of this Act; It will be mandatory to all media to publish this press release failing which it will be deemed an offense punishable under this Act to the extent of having to issue a free one page advertisement of the press release or a free 2 minute audio/video advertisement on electronic media;

(4) Provide to the district administration, within one hundred and twenty days from the enactment of this Act, an action plan, allocate resources, and to free water bodies from violations and any aggression, pollution or exploitation under this Act within a reasonable time not exceeding 3 years;

(5) Undertake and publish a social audit of all water bodies and waterfronts before 31st of December each year;

(6) Publish before 31st of March each year an Audit report of the status of water bodies by the CAG;

(7) Prohibit the growth of habitation beyond the water carrying capacity or beyond the natural capacity to absorb pollution free effluents from treatment processes or plants, and halt all growth of habitations as long as they lack necessary

implementation to ensure river restoration, conservation and water security within the meaning of this Act.

4. Notwithstanding anything contained in any other law for the time being in force, no State Government or other authority shall make, any law or order directing-
 - (1) that any water body or any portion thereof, shall cease to be reserved;
 - (2) that any water body or any portion thereof may be used for any purpose other than its natural function as a water body;
 - (3) that any water body and waterfront or any portions thereof may be assigned by way of lease or otherwise to any private person or to any authority, corporation, agency or any other organization;
 - (4) that any water body or waterfront or any portions thereof may be not be cleared of any vegetation which have grown naturally in that land or portion, for any purpose;
 - (5) that any water body or waterfront or any portions thereof may be not be used for any mining, dumping, construction or allied activities.

Restrictions on law making

CHAPTER III RESTRICTION OF ACTIVITIES ON WATER BODIES

Prohibited activities

5. No person may build any walls, fences, barricades, channels, buildings, sheds of temporary or permanent nature within any water body or waterfront or any portions thereof;
6. No person may lay any pipes, cables, or any other construction in any water body or waterfront or any portions thereof;
7. No person may undertake any industry in any water body or waterfront or any portions thereof.
8. No person may undertake to farm, mine, or use for dumping storage or as roads any water body or waterfront or any portions thereof;
9. No person may release or cause to release any substances, sewage, sullage or effluents or contaminate any water body;
10. No person may undertake any activity or cause to do any activity on any water body or waterfront or any portions thereof that will cause the destruction of the water body or will alter its natural flow or pose any threat to the biological or ecological or hydrological integrity;
11. No person may undertake any activity that can result in or be deemed as aquifer interference activity;
12. No person may exploit or cause the exploitation of any water body;
13. No person may take more water than their share of the water block to which they belong;

Permitted Activities

14. The reserved and protected area may be demarcated by a wire fence or mounds of debris with vegetation plantation on it if the adjoining property has human habitation;
15. Bunds that slow the flow of water and allow rain water harvesting may be permitted in each water block subject to the approval of the river parliament;
16. Rainwater may be released into water bodies or waterfronts provided it is released through open streams and not pipes and is not contaminated with any pollutants;
17. Water may be drawn from such rivers provided it is drawn from a open stream made for the purpose that does not exceed ten times the width of the river in length and a tenth of the diameter of the river and further no such harvest may exceed the

sustainable withdrawal and that such withdrawals do not block access to the withdrawn water from anyone within the water block;

18. Fishing may be permitted during such seasons that may be designated through notification as fishing seasons;
19. Water body restoration, conservation activities and afforestation with indigenous trees on waterfronts where no trees exist;

CHAPTER IV GOVERNANCE AND PENALTIES

20. A River Panchayat or Area Sabha for a water body may be formed by all such stakeholders whose life and livelihood is affected by disturbing the *natural* existence of the water body by virtue of any of the following:

Self-governance
of water body
blocks

 - (1) They live within the water body block;
 - (2) They fish in the water body;
 - (3) They depend on the water body for rainwater harvesting;
21. All such people may hold a river panchayat similar to a gram sabha and undertake to protect the rights of the river and bring effect to water security within the meaning of this Act;
22. The river panchayat may have all such powers to ensure the biological, ecological and hydrological integrity of the water body. The resolutions of the river panchayat on ensuring the integrity of the water body shall be binding on the local body provided that the river panchayat does not violate this Act;
 - (1) The river panchayat shall ensure that no person is deprived of water access or permitted any privilege beyond that permissible under this Act for any reason and particularly of gender, caste or economic and social status;
 - (2) The river panchayat shall conduct a quarterly physical audit of the following:
 - (i) The free and natural flow of the water;
 - (ii) The absence or presence of aggression on the water body and waterfront;
 - (iii) The absence or presence of pollution through any discharge into the water body;
 - (iv) A list of the users with access to the water body and any complaints received about access or other violations within this Act;
 - (v) The water withdrawal rate by the block;
 - (vi) The water carrying capacity of the block;
 - (vii) Restrictions, if any, on drawing water, flora or fauna from the water body;
 - (viii) These audit reports will be published as a “State of the water body” by the local body on its website before December each year;
 - (3) Each river panchayat can nominate one person to a water body cooperative or parliament of the water body if there are more than one river panchayats on the water body;
 - (4) The water body cooperative or parliament will ensure the recognition of each water block and its river panchayat within the meaning of this Act and exercise all such powers to maintain the biological, ecological and hydrological integrity of the watercourse;
23. All offenses shall be cognizable and compoundable; In addition to attracting maximum fines and penalties under the relevant IPC, offenses shall require the

Offences to be
cognizable

violator to fully pay for the restoration of the water body; Offenders may also be required to serve 10 years voluntary time to the mapping every water body in the jurisdiction of the local body, provide a detailed report that on offenses at each location to the local Police; The local Police shall publish all such reports and action taken on their website;

24. Failure of local authorities to fulfill their obligations under this Act shall be deemed as offense under IPC 166-169;

SCHEDULE I RECORD OF WATERBODIES

Name of Local Body:

Date of Record:

No	Water body name and description	Survey No on Left Bank	Survey No on Right Bank	Surface Area of water body	Area of waterfront on left bank	Area of waterfront on right bank

STATEMENT OF OBJECTS AND REASONS

Increasingly the economic performance of India is suffering due to the inability of the water bodies to sustain encroachment, pollution and exploitation of their resources often attributed to a failed monsoon. There is not a single water body in India that does not face loss of ecological, biological and hydrological integrity due to encroachment, pollution or exploitation. As a consequence India is moving from being water stressed to water scarce. The riverine ecosystems are fast being destroyed and the fabric of nature's ability to support the Indian economy will be irreversibly lost unless the water bodies are protected and conserved.

The growing urbanization and industrialization continues to increase demand and fuel conflicts of access, equity and availability of the resources of the water bodies. Encroachment and unnatural interventions on the water bodies has increased the draught and flood cycles causing the naturally self-regulating water cycle to be disturbed.

Climate change further threatens the predictable rain patterns and the seasonal monsoon making water bodies vulnerable to encroachment and exploitation thus causing increasing disappearance of water bodies that have supported India for thousands of years. The resultant loss of resilience to support life, livelihood and an economy across the districts of India is making India extremely vulnerable to sudden disaster and economic collapse.

As a signatory to the United Nations resolution on Right to Water and Sanitation, and as reiterated by the National Water Policy of 2012 there is an urgent need to provide for the restoration and security of water bodies to safeguard and secure our water bodies for not only today but for generations.

It is therefore in public interest to create a law for the restoration and conservation of rivers. It is the duty of every Indian under Article 51A(g) of the Constitution to restore and protect rivers. Furthermore clause 56 of the Seventh Schedule provides for development of rivers and river valleys to the extent to which such regulation and development under the control of the Union is declared by Parliament by law to be in the public interest.

As such it is proposed to pass the River Restoration Act, 2016, to empower the citizens and the local-bodies to discharge their responsibility to protect, conserve and restore all water bodies for ensuring the ecological and economic security of India.

NEW DELHI;